

23STLC05562 23STLC05562

County: los-angeles

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Case Number: 23STLC05562 Hearing Date: September 24, 2026 Dept: 617

Dept.

617

Date:

9-24-26

Case

#: 23STLC05562

Trial

Date: 4-12-27

SUMMARY JUDGMENT/ADJUDICATION

MOVING

PARTY: Defendants, Vladimir Polyakov, D.D.S. and Vladimir Polyakov, D.D.S.,
Inc.

RESPONDING

PARTY: Unopposed/Plaintiff, Reah Sybirski

RELIEF

REQUESTED

Motion

for Summary Judgment, or, in the Alternative, Summary Adjudication

SUMMARY

OF ACTION

After

experiencing significant dental issues, Plaintiff Reah Sybirski sought treatment from Defendant Vladimir Polyakov, D.D.S. Dr. Polyakov performed a dental implant at the site of tooth No. 3 and 3 bone grafts on teeth Nos. 12, 20, and 30. However, Plaintiff's pain and sensitivity did not improve. Dr. Polyakov informed her that the implant "looked good" and more healing time was required. Plaintiff later discovered from another doctor that she had a gum infection at the implant site of tooth No. 3. The infection had spread to the upper and lower right areas of Plaintiff's mouth, including to tooth No. 30.

Plaintiff

underwent multiple consultations and treatments by different doctors. One doctor informed her that bone grafting had not been performed on her, contrary to Dr. Polyakov's representations. Plaintiff ultimately had the dental implant at the site of tooth No. 3 removed. Plaintiff alleges that she continues to suffer from pain, throbbing, and sensitivity. On July 11, 2024, she filed a Second Amended Complaint asserting claims for dental malpractice, intentional infliction of emotional distress (IIED), and intentional misrepresentation.

RULING: Granted.

Request for Judicial Notice:

Granted.

The Court takes judicial notice of the existence of Plaintiff's Second Amended Complaint filed in the instant action. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 882.)

Defendants Dr. Polyakov and

Vladimir Polyakov, D.D.S., Inc. move for summary

judgment, or, in the alternative, summary adjudication as to Plaintiff's causes of action. They argue that Plaintiff's dental malpractice claim fails because she cannot establish that Defendants breached the applicable standard of care or that their treatment caused her injuries. It follows that her IIED claim premised on the alleged negligent treatment also fails. Finally, Defendants contend that Plaintiff's intentional misrepresentation cause of action fails as

a matter of law because Defendants did not misrepresent their performance of bone grafting. Plaintiff does not oppose the motion. Because Defendants show that Plaintiff cannot establish essential elements of her claims, their motion is granted.

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (*Scolinos v. Kolts* (1995) 37 Cal. App. 4th 635, 640-641; *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 382-83; *Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp.* (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (*Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.)

"On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established." (Code Civ. Proc., § 437c, subd. (p)(2).) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (*Ibid.*)

"When deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment." (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467; see also Code Civ. Proc., § 437c, subd. (c).) "An issue of fact can only be created by a

conflict in the evidence. It is not created by speculation, conjecture, imagination or guesswork.” (Lyons v. Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted).)

First

and Second Causes of Action: Dental Malpractice and IIED

Defendants

argue that no triable issue of material fact exists as to Plaintiff’s dental malpractice claim because their treatment of Plaintiff conformed with the applicable standard of care and did not cause Plaintiff’s injuries. They contend that the IIED claim fails for the same reasons.

“Where,

as here, the material issues framed by the complaint are whether the conduct of a medical professional fell below the standard of care and proximately caused the plaintiff’s injury, expert testimony is required to establish the reasonable degree of skill, knowledge, and care ordinarily possessed and exercised by members of the medical profession under similar circumstances [citation], as well as whether the defendant’s conduct proximately caused the plaintiff’s injuries within a reasonable medical probability.” (Zaragoza v. Adam (2025) 109 Cal.App.5th 113, 118-19.)

Defendants

have met their burden as to the dental malpractice and IIED claims because they show that their treatment conformed with the standard of care and thus also could not have constituted “extreme and outrageous conduct.” They present an expert declaration from Lewis Clayman, D.M.D., M.D., an oral and maxillofacial surgeon licensed by the Dental Board of California and Medical Board of California. [Clayman Decl. ¶ 1.] From his education, training, and experience, Dr. Clayman is “familiar with the standard of care for oral and maxillofacial surgery.” [Id. ¶ 2.] Based on his review of Plaintiff’s dental records and deposition transcript, he concludes that Defendants’ treatment of Plaintiff conformed with the applicable standard of care. [Ibid.]

Dr.

Clayman states that Defendants correctly diagnosed Plaintiff and formed a treatment plan that properly addressed the diagnosis. [Clayman Decl. ¶ 13.] Dr. Clayman further explains that Defendants’ surgery and post-operative treatment

of Plaintiff fell within the standard of care. Plaintiff was placed under local anesthesia with oral sedation, the surgical site was prepped and draped to allow for a sterile procedure, and Defendants performed “a sinus lift, socket bone graft, and bone graft with membrane supported by tacks.” [Id. ¶ 8.] Tooth No. 32 was extracted, a UR/implant was placed, and the procedure was completed without complications. [Ibid.] At her January 20, 2023 post-operative visit, Plaintiff was observed to be healing well, the incisions had closed, and a suture was removed. [Id. ¶ 9.] A 3-month post-operative follow-up was scheduled for March 2023. [Ibid.] At the follow-up appointment, Defendants observed “well-healed surgical sites,” there was no swelling or discharge, and all sites showed “good gingival coverage and were healing properly.” [Id. ¶ 10.] Dr. Clayman’s conclusion, based on his experience and review of the pertinent dental records, that Defendants’ treatment fell within the standard of care is sufficient to shift the burden to Plaintiff. (Bushling v. Fremont Medical Center (2004) 117 Cal.App.4th 493, 509.)

Plaintiff

submits no opposition to the motion and therefore no triable issue of material fact is raised as to whether Defendants conformed with the standard of care or engaged in extreme and outrageous conduct. Defendants have thus shown that Plaintiff cannot establish key elements of her malpractice and IIED claims.

Third

Cause of Action: Intentional Misrepresentation

Defendants

also satisfy their burden as to the intentional misrepresentation claim. They argue that no misrepresentation occurred because bone grafting was performed on Plaintiff. Plaintiff alleges misrepresentations in the form of Defendants’ failure to mention bone grafting was not completed and that the implant procedures had failed. [SAC ¶ 60.] However, Defendants have shown that the surgery conformed with the standard of care “without complications” and Dr. Clayman also states that “there is no evidence that the implants placed by Defendants failed.” [Clayman Decl. ¶¶ 8, 16.] And, as mentioned before, Defendants performed bone grafts for Plaintiff. [Id. ¶¶ 8, 14.] Because Plaintiff submits no opposition to the motion, no triable issue of material fact is raised as to whether a misrepresentation was made. Defendants’ motion for summary judgment is therefore granted.

Defendants
to give notice.